

PHILLIPS v. RADER-COLEMAN, et al

22CV46116

**PLAINTIFFS' MOTION FOR JUDGMENT
ON THE PLEADINGS**

Before the Court is a motion for judgment on the pleadings ("MJOP") filed by Plaintiffs/Cross-Defendants Kelly Lynn Phillips ("Kelly Lynn") and Richard Phillips ("Richard") ("Plaintiffs")¹ against the First Amended Cross-Complaint ("FACC") filed by Defendant Sara Ann Rader-Coleman ("Rader").

The Court grants Plaintiffs' Request for Judicial Notice.

I. Factual Background

This case involves a lengthy dispute over a gravel roadway that traverses over neighboring properties.

The "Rader Property" is a 160-acre parcel of real property located in the unincorporated area of Calaveras County, California. (FACC ¶ 1.) Rader asserts that she obtained her interest in the Rader Property upon the death of her grandfather, Jack Rader on January 25, 2012 and awarded to her by the Final Distribution of the Estate by the probate court on or about February 19, 2013. (*Id.* ¶ 2.) (Probate Case No. 12-PR-7340.). Her interest was recorded on February 20, 2013. (*Ibid.*) At the time, Rader was married to Addison Coleman but upon their divorce, he relinquished his rights to the Rader Property. (*Ibid.*) Rader contends that the Rader Property has been in her family for six generations and that she has lived on the house on said property since 1974. (*Id.* ¶ 3.) Rader also contends that for fifty years, the Rader family has openly and continuously used the access road without interference.

Kelly Lynn is the owner of adjacent property to the west of the Rader Property ("Phillips Property.") (FACC ¶ 4.) Rader alleges that Kelly Lynn became owner of the Phillips Property as a gift from family. (*Id.* ¶ 6.) title issues -- is disputed. (UMF 5.)

The Rader Property is accessed via a roadway and public utility easement on Dorray Road through the Phillips Property. (FACC ¶ 7.) Until 1967, Dorray Road served the Rader Property as a public road, at which time the public rights were abandoned but the private access easement rights continued unabated. (*Ibid.*) Dorray Road across the

¹ Given the common surnames of the parties, first names are used. No disrespect is intended.